

Rizwan Ahmad v. State of U.P.

Allahabad High Court · Division Bench · 18 January 2021 · Writ-C No. 27067 of 2020 · Writ-C No. 27067 of 2020 · **Writ disposed; Clause 6.14 representation to be decided in four weeks; supply restored on first instalment.**

HEADNOTE

Without examining a pending provisional assessment on merits, the Allahabad High Court directed the assessing officer to decide the consumer's representation for payment of electricity dues in easy instalments under Clause 6.14 of the Electricity Supply Code, 2005 within four weeks, and ordered restoration of supply on deposit of the first instalment as fixed, subject to timely payment of the remaining instalments.

FACTUAL SUMMARY

Rizwan Ahmad challenged two provisional assessments dated 13 July 2020 and 12 October 2020 for electricity dues, seeking certiorari to quash them and a mandamus against coercive recovery. At the hearing he did not press the 13 July 2020 challenge. He offered to deposit Rs 7,62,307 in easy instalments and relied on a 10 November 2020 representation still pending before the assessing officer of the power corporation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment payment of dues and restoration on first instalment

HOLDING

Where the consumer does not press the challenge to a provisional assessment and seeks only to pay the dues in instalments, the assessing officer is to consider and decide the pending representation under Clause 6.14 of the Electricity Supply Code, 2005. The Court, without going into the merits, directed that decision within four weeks and ordered that the electricity connection shall be restored on deposit of the first instalment as fixed by the officer, subject to payment of remaining instalments within the time so fixed, failing which the consumer would not be entitled to the benefit of the order. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 A pending plea to pay assessed electricity dues in easy instalments was directed to be considered under Clause 6.14, with restoration of supply on deposit of the first instalment as fixed by the licensee. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE PROVISIONAL ASSESSMENT ORDERS DATED 13.07.2020 AND 12.10.2020

The challenge to the 13.07.2020 assessment was not pressed; the Court disposed of the petition without going into the merits of the assessments or the quantum of dues. ¶ 1